

Diane Sadler, Petitioner,
v.
Unemployment Compensation Board of Review, Respondent.

No. 1800 C.D. 2009.

Commonwealth Court of Pennsylvania.

Submitted: February 26, 2010.

Filed: March 24, 2010.

BEFORE: PELLEGRINI, Judge; BUTLER, Judge; KELLEY, Senior Judge.

OPINION NOT REPORTED

MEMORANDUM OPINION BY JUDGE PELLEGRINI

Diane Sadler (Claimant) appeals from the order of the Unemployment Compensation Board of Review (Board) denying her unemployment compensation benefits for engaging in willful misconduct pursuant to Section 402(e) of the Unemployment Compensation Law (the Act).^[1] For the reasons that follow, we affirm.

Claimant worked as a director and system coordinator of the Bradford County Library System for almost 10 years. On August 9, 2008, Claimant was attending a business meeting with nine other librarians from various other libraries in the area along with several other employees. Claimant, who was chairing the meeting, introduced herself and greeted everyone and then left the room while another librarian gave a presentation to those in attendance. When Claimant left the meeting, she received a phone call informing her that a former director of the Bradford County Library Board had died that morning.

Upon hearing the news, Claimant returned to the meeting and informed the attendees, many of whom knew the former director, of her death. She stated that she was happy that the former director died, acted like she was excited, and yelled "yeehaw" in celebration. Later on, during a meeting break but in the presence of the others, she said to another librarian, "Ding dong, the witch is dead," quoting from the Wizard of Oz song.

The next day, another librarian wrote Claimant a letter, stating that she was "appalled and embarrassed" by Claimant's unprofessional behavior at the meeting. The librarian also mailed copies of this letter to a few other librarians, one of whom notified the County (Employer) of what had occurred. Employer held a meeting with Claimant, who confirmed that she had indeed expressed pleasure at the news of the former director's death at the meeting. Employer then fired Claimant.

Claimant filed for unemployment compensation benefits with the Department of Labor and Industry, which denied her claim. She appealed this determination and, following a hearing, the Referee issued a decision granting benefits. Employer appealed this decision to the Board, which reversed on the ground that Claimant's behavior constituted willful misconduct. Claimant requested reconsideration, which was denied by the Board, and she then filed the instant appeal.^[2]

On appeal, Claimant argues that Employer failed to meet its burden of presenting substantial evidence that she had engaged in willful misconduct. She contends that while her comments were "crass and disrespectful," they did not rise to the level of willful misconduct, which must be evaluated on a case-by-case basis.

While the Act does not define willful misconduct, our Supreme Court has held that "willful misconduct" in the unemployment compensation context means:

(a) wanton or willful disregard for an employer's interests; (b) deliberate violation of an employer's rules; (c) *disregard for standards of behavior which an employer can rightfully expect of an employee*; or (d) negligence indicating an intentional disregard of the employer's interest or an employee's duties or obligations.

Grieb v. Unemployment Compensation Board of Review, 573 Pa. 594, 600, 827 A.2d 422, 425 (2003) (emphasis added). For insensitive comments to rise to the level of willful misconduct in cases, such as here, where the Employer has no specific policy governing standards of behavior, they must be of such a character that the speaker knew or intended, or that any reasonable person would have known, that the comments were offensive or inappropriate under the circumstances. *Poplin v. Unemployment*

Compensation Board of Review, 690 A.2d 781 (Pa. Cmwlth. 1997). The burden of proof is on the employer to prove allegations of willful misconduct. Phoenixville Area School District v. Unemployment Compensation Board of Review, 596 A.2d 889 (Pa. Cmwlth. 1991).

Whether an offensive comment rises to the level of willful misconduct is highly fact-specific. In Witkowski v. Unemployment Compensation Board of Review, 633 A.2d 1259 (Pa. Cmwlth. 1993), we held that a white employee who told two black employees that their employer was "working me like a n ____r" committed willful misconduct, while in Poplin, 690 A.2d 781, we held that a white employee who referenced the Ku Klux Klan in the presence of a black employee and then asked the black employee if he wished he were white did not engage in willful misconduct. In McCall v. Unemployment Compensation Board of Review, 717 A.2d 623 (Pa. Cmwlth. 1998), we held that an employee of a business school who was responsible for acquisition and maintenance of a city contract to train persons on welfare engaged in willful misconduct when she questioned whether the program taught students moral values about bearing children out of wedlock and then stated that she "strongly objects to supporting whores on welfare." On the other hand, in Gallagher v. Unemployment Compensation Board of Review, 388 A.2d 785 (Pa. Cmwlth. 1978), we held that a bartender who called his boss' girlfriend a "bitch" while at the bar on his day off from work did not engage in willful misconduct because the claimant's comment was not connected with his work.

Gallagher is most similar to this appeal, but with the important distinction that the claimant in *Gallagher* was physically present at his place of employment, he was not actually working when he called his employer's girlfriend a bitch while, here, Claimant was participating in a business meeting at the time of her comments. If Claimant had walked into her library to check out a book on a day she was not working and exclaimed "yeehaw" and "ding dong, the witch is dead" upon hearing of the death of her former director, her comments, while crass, would not have risen to the level of willful misconduct. However, because she was attending a business meeting at the time of her comments and, in fact, interrupted the meeting to express her unabashed pleasure at the news, her conduct was qualitatively different and crossed the line from crassness to willful misconduct. As Claimant acknowledged, it was offensive and inappropriate to express such demonstrative joy over the death of a former supervisor at a business meeting filled with people who knew the deceased and had just learned of her death.

For the foregoing reasons, the order of the Board is affirmed.

ORDER

AND NOW, this 24th day of March, 2010, the order of the Unemployment Compensation Board of Review, dated August 17, 2009, is affirmed.

[1] Act of December 5, 1936, Second Ex. Sess., P.L. (1937) 2897, as amended, 43 P.S. §802(e). Section 402(e) of the Act provides:

An employee shall be ineligible for compensation for any week in which his unemployment is due to his discharge or temporary suspension from work for willful misconduct connected with his work, irrespective of whether or not such work is "employment" as defined in this act.

[2] Our standard of review is limited to a determination of whether the Board committed an error of law or constitutional violation and whether the Board's findings of fact are supported by substantial evidence of record. Beverly Enterprises, Inc. v. Unemployment Compensation Board of Review, 702 A.2d 1148 (Pa. Cmwlth. 1997). The issue of whether the actions of an employee constitute willful misconduct is a question of law that is subject to the review of this Court. Temple University v. Unemployment Compensation Board of Review, 565 Pa. 178, 772 A.2d 416 (2001).

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